

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1359 of 2002

Hatem Khan Bara Masjid Committee
represented by –

Mr. Md. Abdur Rashid, Chairman of
Hatemkhan Bara Masjid Committee, P.S.
Boalia, District-Rajshahi.

----- For the plaintiff- petitioners

=Versus=

Divisional Director, Islamic Foundation,
Rajshahi Division, at present- Hatemkhan
Bara Jame Masjid of Hatemkhan, P.S.
Boalia, District-Rajshahi and another.

----- Defendant-opposite-parties.

No one appears

----- For the petitioner

Mr. Mohammad Easin Sikder, Advocate,

----- For the opposite-party No.1

Heard and Judgment on 11.01.2017

At the instance of the plaintiff-petitioner Md. Sayed Hossain Khan represented by Md. Abdur Rashid, Chairman of Managing Committee on behalf of Hatemkhan Bara Masjid Committee, P.S. Boalia, District-Rajshahi, this Rule has been issued calling upon the opposite-parties to show cause as to why the judgment and order dated 22.11.2001 of the learned Additional District Judge, Rajshahi in Miscellaneous Appeal No.54 of 2001 affirming those dated 08.07.2001 of the learned Senior Assistant Judge, Rajshahi Sadar in Miscellaneous Case No.2 of 2000 should not be set aside.

The said Md. Sayed Hossain Khan died and the present Chairman of the Masjid Committee Md. Abdur Rashid has been substituted by an order of this Court.

The relevant facts for disposal of this Rule, inter alia, are that the present petitioner as the plaintiff filed the Other Class Suit No.170 of 1991 in the Court of learned Senior Assistant Judge, Rajshahi for declaration of an unregistered deed dated 25.08.1988 as illegal, void, collusive, fraudulent and ineffective and also not binding upon the plaintiff-petitioner. The present opposite parties as the defendant appeared to contest the suit by filing a written statement. On 03.05.2000 the plaintiff filed two applications for adjournment of the hearing on the ground that the learned Advocate for the plaintiff was physically ill, but the learned trial Court rejected the application for adjournment and also dismissed the suit for default on the same day.

Being aggrieved by the aforesaid judgment and order dated 03.05.2000 the present petitioner as an applicant filed the Miscellaneous Case No.2 of 2000 in the Court of Senior Assistant Judge, Rajshahi Sadar under Order 9 Rule 9 read with section 151 of the Code of Civil Procedure.

After hearing the parties the learned Senior Assistant Judge dismissed the miscellaneous case by his judgment and order dated 08.07.2001. Being aggrieved the present petitioner as an appellant filed the Miscellaneous Appeal No.54 of 2001 in the

Court learned District Judge, Rajshahi which was heard by the learned Additional District Judge, Court No.2 Rajshahi on transfer who by his judgment and order dated 22.11.2001 also disallowed the appeal.

This revisional application has been filed under section 115(1) of the Code of Civil Procedure challenging the said judgment and order passed by the appellate Court below and the Rule was issued thereupon.

No one appears to support the Rule, despite the fact this matter has been appearing in the list for at least 4/5 months.

However, from the revisional application, it appears that the petitioner has taken up grounds that the Court below committed an error of law resulting in an error in the decision occasioning failure of justice in not holding that the petitioner was prevented by sufficient cause to conduct the suit when it was called in for hearing as such he is entitled to get an order of restoration of the suit by allowing the Miscellaneous Case under Order 9 Rule 9 of the Code of Civil Procedure filed by him.

The Rule has been opposed by the opposite-party No.1, the Divisional Director, Islamic Foundation, Rajshahi Division by filing a counter affidavit contending inter alia, that Hatem Ali Khan Baro Jame-e-Masjid Rajshahi has got a long and interesting history. Hatem Ali Khan Jame-e-Masjid committed to transfer the Mosque to the Islamic Foundation Bangladesh for its all round

development in the greater interest of the Public on the basis of valid deed. The said mosque committee challenged the said deed in the Court of the learned Assistant Judge (Additional Court) Rajshahi by filing O.C Suit No.170 of 1991 on 14.07.1991 which is pending for trial. Another suit being Suit No.135 of 1988 was filed by the same party before the learned Subordinate Judge, Rajshahi which was by the order on 04.06.1991 allowed to return the plaint to file the suit in a proper Court.

The Islamic Foundation Rajshahi contested the suit by filing written statements denying all the allegations made in the plaint. The defendant further states that the specific case of the Islamic Foundation is that Hatem Ali Khan Jame-e-Masjid Committee after detailed enquiry and inspection with the authority of Islamic Foundation executed the deeds transferred the management and administration of the Mosque and Mosque property in favour of Islamic Foundation Rajshahi for better interest of the public. After completion of the said document of transfer the physical possession of the movable and immovable properties of the said Jam-e-Masjid were taken over by the Islamic Foundation Rajshahi legally. The so called Hatem Ali Khan Mosque committee managed to get two orders passed from the Court on 02.08.1992 and 20.01.1993 directing to remove two Signboards and office of the Islamic Foundation by way of temporary mandatory injunction by practicing fraud upon the Court. Islamic Foundation however filed

application for vacating the said two orders and the learned Court after hearing the parties vacated the said two orders dated 02.08.1992 and 20.01.1993.

It further states that the O.C. Suit No.170 of 1991 came up for preemptory hearing on 03.05.2000 and the same was dismissed for default and the plaintiff-petitioner on 03.05.2000 filed an application for setting aside the order of dismissal for default but the learned Assistant Judge Rajshahi dismissed the same by his order dated 08.07.2001 in Miscellaneous Case No.02 Of 2000. Then the plaintiff-petitioner being aggrieved by the aforesaid order preferred the Miscellaneous Appeal No.54 of 2001 before the learned District Judge, Rajshahi which was heard by the learned Additional District Judge and dismissed the same by his order dated 22.11.2001.

Mr. Mohammad Easin Sikder, the learned Advocate appearing for the opposite-party No.1 submits that the Title Suit No.170 of 1991 was dismissed for default by the learned Court after pendency of the suit nearly 9 years. The miscellaneous case filed against the said order was also dismissed by the same Court after consideration of the relevant documents required for restoration of a suit under the provisions of order 9 Rule 9 of the Code of Civil Procedure and the appeal filed against the said judgment and order was also disallowed lawfully, as such no error of law has been committed by the Courts below in deciding

against the present-petitioner, therefore the Rule should be discharged.

The learned Advocate further submits that the present opposite-party No.1 Islamic Foundation of Rajshahi has always been the supervising authority over the Masjid in question which was authorized by the executive committee by executing an unregistered deed dated 25.08.1988, therefore, the subsequent committee did not have any authority for cancelling the said deed as the said deed had already been acted upon and the opposite-party No.1 has been functioning as per the terms and conditions of the said deed but the present petitioner obtained the Rule by misleading this Court which is liable to be discharged.

Considering the above submissions made by the learned Advocate for the opposite-parties and also considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgments passed by the appellate Court below, it appears to me that the present petitioner as the plaintiff instituted Title Suit for declaring the unregistered deed dated 25.08.1988 executed by the defendant Nos.1 & 2 who were the then Secretary of the Hatem Khan Bara Masjid Committee and the present opposite party No.1 Divisional Director, Islamic Foundation Rajshahi Division as illegal, void, collusive and fraudulent. I have noticed that the original suit was filed in the of 1999 by the

present petitioner as the plaintiff but the suit was not represented by them for conducting the hearing of the suit. It further appears to me that on 03.05.2005 when the matter was fixed in the Court of the learned Senior Assistant Judge for preemptory hearing, the learned Advocate for the petitioner filed an application for adjournment which was rejected by the Court and the suit was dismissed for default. The miscellaneous case was filed under Order 9 Rule 9 of the Code of Civil Procedure for restoration of the suit to its filed and number.

I have to decide whether the learned Assistant Judge, Rajshahi committed any error of law by rejecting the miscellaneous case. In the regard I have carefully examined the relevant matters in this revisional application also the relevant provision of law under Order 9 Rule 9(1) of the Code of Civil Procedure. Rule 9(1) of the Code of Civil Procedure which read as follows :-

“9(1) Where a suit is wholly or partly dismissed under rule 8, the plaintiff shall be precluded from bringing a fresh suit in respect of the same cause of action. But he may apply for an order to set the dismissal aside, and if he satisfies the Court that there was sufficient case for his non-appearance when the suit was called on for hearing, the Court shall make an order setting aside the dismissal upon such terms as to costs or otherwise as it thinks fit, and shall appoint a day for proceeding with the suit.”

From the above provision of law it appears to me that any aggrieved persons by an order of dismissal for default passed by the court requires filing a fresh suit, therefore, in the present case, the miscellaneous case was filed which was rejected by the trial Court and an appeal was disallowed by the appellate Court below after considering the evidence in support of the appeal. I have perused the judgments and orders passed by the Courts below, I do not find that they have committed any error of fact and law.

The appellate Court concurrently found against the present petitioner to disallow the appeal on the basis of the following findings :-

“দরখাস্তকারী পক্ষের দরখাস্ত বর্হীভূত ভাবে উল্লিখিত উপরোক্ত সাক্ষ্য আইনসংগত ভাবে গ্রহণযোগ্য নহে। অর্থাৎ মূল মোকদ্দমার ধার্য্য তারিখে দরখাস্তকারী পক্ষ যথেষ্ট কারণে আদালতে অনুপস্থিত ছিলেন সেই বিষয়টি উপরোক্ত আলোচনার আলোকে প্রদত্ত সাক্ষ্য প্রমানাদি দ্বারা প্রমাণ করিতে সক্ষম হন নাই। এইরূপ অবস্থায়, বিজ্ঞ নিম্নাদালত মূল মোকদ্দমায় নিযুক্তীয় আইনজীবী সাহিব অনুস্থ ছিলেন তাহা সাফল পক্ষ প্রদত্ত সাক্ষ্য ও কাগজাদি দ্বারা প্রমাণ করিতে সমর্থ হন নাই মর্মে সিদ্ধান্ত গ্রহণে সাফলপক্ষ প্রার্থিত প্রতিকারসহ অর্থাৎ কোন প্রতিকার পাওয়ার হকদার নহেন।”

From the above judgments of the Court below it appears that the present petitioner failed to take proper ground against the order passed on 03.05.2000 dismissing the suit for default after pendency of Title Suit No.170 of 91 for more than 9 years without taking necessary steps for disposal of the said suit by the present petitioner. In this regard I considered that the learned appellate Court below has committed no error of law by passing the

impugned judgment and order. I am therefore, not inclined to interfere in to the judgment and order passed by the appellate Court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of injunction passed on 04.04.2007 restraining the opposite-parties from evicting the petitioner and tenants pursuant to the notice dated 28.03.2007 is hereby recalled and vacated.

The office is directed to communicate this judgment and order to the concerned Court immediately.